

HOUSE No. 1088

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to personal injury protection, benefits due and payable.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 1088

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 1088) of Bruce J. Ayers relative to personal injury protection. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to personal injury protection, benefits due and payable.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 34M of Chapter 90 as appearing in the 2022 official edition is
2 hereby amended in line 82 by inserting after the word “protection” the following:

3 Whether in whole or in part,

4 SECTION 2. Section 34M of Chapter 90 as appearing in the 2022 official edition is
5 hereby amended in line 94 by inserting after the word “fees” the following:

6 except the court shall not assess attorney’s fees or costs if, within thirty days of service of
7 the summons and complaint, the insurer tenders to the Plaintiff the amount due and payable.